



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Shrednik, PLA, Parks and Greenway Planner

Subject: **A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE AN AMENDMENT TO THE DEVELOPMENT AGREEMENT BETWEEN THE BOARD OF COUNTY COMMISSIONERS OF LARAMIE COUNTY, WYOMING, THE CITY OF CHEYENNE, AND COLL-IND, LLC REGARDING THE NIOBRARA ENERGY PARK."**

Date: February 6, 2024

Background:

This is an amendment to the original Development Agreement made between the Developer of Niobrara Energy Park, COLL-IND LLC and the City and County in 2012, Resolution 5295. As described in this resolution and on page 3 of the original Development Agreement document, installation of an 8-foot sidewalk along the east side of Energy Drive to Fox Farm Road was required. It is the opinion of staff that construction of this segment of sidewalk is not in the best interest of the City or County based on plans for future installation of storm sewer pipe in this area as any sidewalk installed will likely be removed and/or damaged in the future. City staff, the County and the Developer have agreed that the Developer should pay the City \$60,000.00 toward construction of a Greenway connector alternative as shown in the attached exhibits.

Enclosures:

Resolution

Niobrara Energy Park Development Agreement 5.7.2012

Niobrara Energy Park Development Agreement Amendment #1

Greenway Exhibit

Niobrara Energy Park Exhibit

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE AN AMENDMENT TO THE DEVELOPMENT AGREEMENT BETWEEN THE BOARD OF COUNTY COMMISSIONERS OF LARAMIE COUNTY, WYOMING, THE CITY OF CHEYENNE, AND COLL-IND, LLC REGARDING THE NIOBRARA ENERGY PARK."

WHEREAS, On July 11, 2011, the Governing Body approved Resolution #5295 authorizing the Mayor and the City Clerk to sign a County Final Plat and Development Agreement for the Niobrara Energy Park;

WHEREAS, on May 7, 2012, Mayor Richard Kaysen signed the Development Agreement between COLL-IND, LLC ("Developer"), City of Cheyenne and the Board of Commissioners of Laramie County, Wyoming and the document was recorded in the Laramie County Clerk's office, reference # 590831, Bk 2274, page 343;

WHEREAS, a master plan has been completed for the Fox Farm Road Corridor that may include certain storm water drainage improvements that may impact the Energy Drive right-of-way planned improvements of the Development Agreement;

WHEREAS, the original Development Agreement describes improvements to be installed by the developer to include an 8' concrete sidewalk along the east side of Energy Drive. The area that this sidewalk is to be installed in appears to be the most likely corridor for a future storm sewer pipe from the Fox Farm road-way improvement project;

WHEREAS, all parties agree that it would be cost effective to defer the installation of the sidewalk until after the Fox Farm Road project improvement has been completed;

WHEREAS, all parties agree that the Fox Farm Road project timeline is uncertain and that any concrete poured today would likely be destroyed in the future; and,

WHEREAS, the Developer has offered to pay the amount of sixty thousand dollars (\$60,000) to the City of Cheyenne toward the construction of an alternative Greenway connection as set forth in Exhibit A, attached, to be located within the right-of-way of east of Allison Road, south of ARP Elementary School and north of E. Allison Road to make an alternative transportation connection into the business park.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNNE, WYOMING, that the Mayor is hereby authorized and directed to execute the Amendment #1 to the Niobrara Energy Park Development Agreement and such other documents as necessary to effectuate the same.

PRESENTED, READ AND ADOPTED this _____ day of _____,
2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

ENG.

DEVELOPMENT AGREEMENT

This Development Agreement ("Development Agreement") is entered into by and between the Board of County Commissioners of Laramie County, Wyoming, 309 W. 20th Street, Cheyenne, WY 82001 ("County"), the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, WY 82001 ("City"), COLL-IND, LLC, a Wyoming limited liability company, 255 Storey Blvd, Cheyenne, WY 82009, ("Developer"), and Read Company and Read Mining Company, c/o Christine C. Read, ("Owner"). This Development Agreement specifies standards for the development of an industrial park, known as the "Niobrara Energy Park," that is located within the service area boundaries of the South Cheyenne Water and Sewer District, Laramie County, Wyoming. In consideration of the promises set forth below, the parties agree as follows.

Status of COLL-IND, LLC: It is mutually understood and agreed that COLL-IND, LLC, is not presently the record owner of the property subject to this Development Agreement and that COLL-IND, LLC, will become the record owner of the property following the execution of this Development Agreement and the recording of a final plat for Niobrara Energy Park.

Legal Description of Property.

This agreement covers all of the land owned by Developer as depicted in Exhibit A which is the Final Plat of Niobrara Energy Park. This area shall be referred to in this Agreement as the Niobrara Energy Park Area.

The following is a description of lands included in a development agreement and final plat more particularly described as follows:

LEGAL DESCRIPTION OF A PARCEL OF LAND BEING SITUATED IN THE NORTH ONE HALF OF SECTION 9, TOWNSHIP 13 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOW:

COMMENCING AT THE CENTER ONE-QUARTER CORNER OF SAID SECTION 9 ; THENCE S89°48'14"W ALONG THE EAST-WEST CENTERLINE OF SAID SECTION 9 A DISTANCE OF 1320.38 FEET TO A POINT ; THENCE N00°04'23"W A DISTANCE OF 720.09 FEET TO A POINT ; THENCE N00°04'23"W A DISTANCE OF 600.24 FEET TO A POINT ; THENCE S89°59'34"E A DISTANCE OF 659.06 FEET TO A POINT ; THENCE N89°52'32"E A DISTANCE OF 659.32 FEET TO A POINT ; THENCE S89°58'23"E A DISTANCE OF 1746.75 FEET TO A POINT; THENCE S00°01'37"W A DISTANCE OF 215.00 FEET TO A POINT; THENCE S61°33'40"E A DISTANCE 240.36 FEET TO A POINT; THENCE S00°28'16"W A DISTANCE OF 539.00 FEET TO A POINT ; THENCE N89°19'58"E A DISTANCE OF 320.30 FEET TO A POINT ; THENCE S89°19'02"E A DISTANCE OF 554.93 FEET TO A POINT ; THENCE S00°40'21"W A DISTANCE OF 119.99 FEET TO A POINT ; THENCE N89°19'06"W A DISTANCE OF 224.94 FEET TO A POINT ; THENCE N89°19'00"W A DISTANCE OF 330.02 FEET TO A POINT ; THENCE S89°19'36"W A DISTANCE OF 319.86 FEET TO A POINT ; THENCE S00°28'55"W A DISTANCE OF 329.20 FEET TO A POINT ; THENCE N89°58'05"W A DISTANCE OF 318.58 FEET TO A POINT ; THENCE S89°57'30"W A DISTANCE OF 330.03 FEET; THENCE N89°56'21"W A DISTANCE OF 1297.52 FEET TO THE POINT OF BEGINNING.

SAID PARCEL OF LAND CONTAINS 100.10 ACRES MORE OR LESS.

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DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 1 OF 15

Intent of the Parties. It is the intent of the parties to this Development Agreement to clarify and specify the development standards regarding initial infrastructure installed which is being overseen by Wyoming Business Council Grant and administered by the County. All improvements contemplated by this Development Agreement will be designed at the expense of the Developer. Owner's representations, warranties, and obligations under this agreement shall extend only to the representations, warranties, and obligations made by Owner under that certain paragraph titled "**Kickbacks**" under this agreement; and furthermore, only the paragraphs titled "**Kickbacks**" and "**Indemnification**" under this agreement shall apply to Owner, and all other paragraphs under this agreement shall have no legal or binding effect upon Owner.

Duration of Agreement. This Development Agreement shall become effective when it is fully executed by the parties hereto and shall remain in full force and effect until such time as the parties revoke, cancel, or amend this agreement through a written instrument executed with the same formalities as this Development Agreement.

Recitations. The County, City and Developer commit the following:

1.) Roadway Design:

- a.) Allison Road is to be platted as a 70' ROW and constructed as a 36' roadway with curb and gutter. As Allison road approaches College Drive, it shall be constructed as a 40' roadway with curb and gutter. The remaining ROW shall be graded for future parkway landscape strips (6') and sidewalks (6'). Parkway strips are located between the back of curb and the sidewalk. The City may require the installation of sidewalk adjacent to Allison Road in conjunction with development actions being pursued in the City as required by City Code at time of development. Allison Road shall be constructed from College Drive to a point not more than 400' east of the western boundary of the Final Plat for Niobrara Energy Park and a cul-de-sac shall be constructed at the western terminus of the constructed portion of Allison Road. The cul-de-sac shall be removed when Allison Road is constructed along the platted ROW to connect to Avenue C.
- b.) Energy Drive and Hinkley Avenue are to be platted as 60' ROW and, when constructed, shall be constructed as a 36' roadway with curb and gutter. The remaining ROW shall be graded for future parkway landscape strips (6') and sidewalks (6'). Parkway strips are located between the back of curb and the sidewalk. The City may require the installation of sidewalk adjacent to Energy Drive and Hinkley Avenue in conjunction with development actions being pursued in the City as required by City Code at time of development.
- c.) Avenue C-2 will be treated with Mag-Chloride when connected to Hinkley Drive.

2.) Regional Detention:

Detention facilities will be designed to help alleviate drainage concerns not only within the Niobrara Energy Park, but also for adjacent properties and public ROW's. Detention facilities will be designed in accordance with current detention standards of the City and the County. Detention standards include, but are not limited to, ensuring that slopes are no greater than 4:1 and that the release rates will not be increased over the historic rates. The design of detention facilities shall incorporate as much of the regional basin as possible. Regional Detention goals shall be developed in conjunction with the City and the County and shall take into consideration future uses of the Niobrara Energy Park and parcels surrounding the Park. Regional Detention facilities shall be dedicated to the County and the County shall assume maintenance responsibility in accordance with Wyoming Business Council grant conditions. The regional detention pond to be constructed within Niobrara Energy Park will be designed to accommodate upstream detention and will comply with the following design criteria. The design criteria in Subparagraphs a, b, c, and d of this Section may be modified only upon the joint written approval of the City Engineer and County Planner.

- a.) Adjacent to Energy Drive, a usable, buildable land area that is, at a minimum, of one acre and no less than 100' in any direction shall be provided in order to accommodate potential future construction of maintenance facilities, restrooms, parking areas and picnic shelters if so desired by the governmental agency with jurisdiction over the regional pond.
 - b.) Water and sanitary sewer service shall be supplied to the one acre site, if the developer is only required to provide the taps and not the development fees, and electric shall be stubbed out to the property line at a mutually agreeable location to avoid future cuts to the roadway.
 - c.) Within the detention pond a "flat" area with a minimum area of 160' by 360' shall be graded to prevent water from settling within the pond.
 - d.) An area shall be graded to provide vehicle access for maintenance to the detention pond. In addition, an area shall be graded to provide future pedestrian access to the detention pond from Energy Drive. An access easement shall be recorded to provide access from South College Drive to the northeast corner of the area subject to the Final Plat for Niobrara Energy Park.
- 3.) **Greenway and Pedestrian Connectivity:** All greenway paths will be built concurrently with the initial construction of road infrastructure through the park.
- a.) The Developer agrees to dedicate to the County along the southern boundary of the Niobrara Energy Park final plat a 20' strip for a 10' greenway path.
 - b.) The developer agrees to dedicate a 20' strip from the south boundary of the final plat to Allison Road along the alignment of Energy Drive and to concurrently construct an 8' greenway path to Fox Farm Road at the time of initial construction of road infrastructure through the park.
 - c.) The Developer agrees to dedicate a 20' easement along the easterly boundary of the final plat from the south greenway dedication to Allison Road and construct an 8' greenway path. This easement may be vacated if

the green way continues along Allison Draw to College Drive on LCCC property.

- d.) If for some reason Greenway cannot be installed sidewalks will be required on all frontages.

4.) Site Plans & Landscaping:

Site Plan applications will be reviewed by the governing entity at the time of application and will direct individual lot design. However, the following criteria shall be followed in conjunction with the governing landscape and site plan design regulations.

- a.) Tree lawns are required to include street trees at a maximum spacing of 40' for large canopy trees varieties. Street trees are to be located in the treelawn between the sidewalk and back of curb. Ornamental trees will be used when overhead power lines impede vertical growth. Large canopy tree species shall be used where there are no overhead lines. In all cases street trees are required to be irrigated with a drip irrigation system.
- b.) Of the required internal trees 25% may be placed along greenway sections dedicated to the County instead of on private property.
- c.) Lots adjacent to the existing school parcel will be required to place a 3' landscape berm with a 4:1 slope with a 6' privacy fence placed on the top of the berm. Landscaping will also be placed along the berm.

5.) Utilities:

- a.) Water and Sewer utilities will be installed and connected to the South Cheyenne Water and Sewer District system in accordance with its regulations. Water, storm sewer and sanitary sewer mains shall be located within the curb to curb section of the street. Fire hydrants will be located within 5' of back of curb. The intent of these parameters is to keep these infrastructures in the public right of way in order to maximize developable land outside the right of way and preserve the area within the right of way for future installation of detached sidewalk section and tree lawn. Modifications may be made to these parameters provided the intent of the subsection is met and mutually agreed to by the City Engineer and the County Planner.
- b.) All other utilities not otherwise addressed in this agreement shall be located in the right-of-way, but not within the 6' treelawn located between the back of curb and detached sidewalk location or on private property within appropriate utility easements. All new phone, fiber optic, and cable lines are to be installed underground. Cheyenne Light Fuel and Power has recommended overhead electric.

- c.) Developer will provide approved water plans and an electronic copy (AutoCad) of the plat to the City of Cheyenne Fire Department and Laramie County Fire District #1.

6.) Maintenance Agreement:

Allison Road, Energy Drive and Hinkley Drive will be maintained by the commercial properties that will be using the roadways until such time as the ROW's are annexed to the City, except for Allison Road which may be maintained by the County if at any time it is extended to Avenue C. The attached maintenance plan will be implemented until such time the development is annexed into the city. Monies collected and not used for roadway maintenance shall be returned to the property owners.

Amendments. Any changes, modifications, revisions or amendments to this Agreement that are mutually agreed upon in writing by the parties hereto shall be incorporated by written instrument, signed by all parties to this Agreement.

Assignment: Neither this Agreement, nor any rights or obligations hereunder shall be assigned or delegated by a party without the prior written consent of the other party.

Notices. All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the addresses provided at the front of this Agreement, either by regular U.S. mail or delivery in person. Delivery shall be deemed to have occurred 3 days following deposit in the U.S. mail or upon delivery in person.

Remedies and Enforcement. Except as provided in that certain paragraph titled "Intent of the Parties" if any party defaults in the performance of this Agreement, any other party shall have the right to exercise all remedies provided by law or in equity.

Severability. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect as if the illegal or unenforceable term was omitted.

Sovereign Immunity. The City and County do not waive sovereign immunity by entering into this general agreement and specifically retain all immunities and defenses available pursuant to Wyo. Stat, § 1-39-104(a) and all other state laws.

Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between and for the benefit of the parties to this Agreement.

Kickbacks. Developer/Owner warrants that no gratuities, kickbacks or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. In addition:

- i. Developer/Owner shall comply with the Anti-Kickback Act of 1986, 41 U.S.C. §§ 51-58, as supplemented in the Department of Labor Regulations 29 C.F.R., § 3. This Act provides that Developer/Owner is prohibited from inducing by any means, any person employed in the construction, completion, or repair of public work, to give up any part of the compensation to which he is otherwise entitled.
- ii. No staff member or other personnel of the City or the County shall engage in any Agreement or activity which would constitute a conflict of interest as related to this Agreement.

Applicable Law and Venue: The parties mutually understand and agree this Agreement shall be governed by and interpreted pursuant to the laws of the State of Wyoming. If any dispute arises between the parties from or concerning this Agreement or the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of Wyoming, First Judicial District, sitting at Cheyenne, Wyoming. The foregoing provisions of this paragraph are agreed by the parties to be a material inducement to Developer and to County in executing this Agreement. This provision is not intended nor shall it be construed to waive County governmental immunity as provided in this Agreement.

Discrimination: All parties agree they will not discriminate against any person who performs work under the terms and conditions of this Agreement because of race, color, gender, creed, handicapping condition, or national origin.

ADA Compliance: All parties agree they will not discriminate against a qualified individual with disability, pursuant to a law as set forth in the Americans With Disabilities Act, P.L. 101-336, 42 U.S.C. § 12101, *et seq.*, and/or any properly promulgated rules and regulations relating thereto.

Indemnification: To the fullest extent permitted by law, Developer agrees to indemnify and hold harmless, Owner, County and the City, and their elected and appointed officials, employees and volunteers from any and all liability for injuries, damages, claims, penalties, actions, demands or expenses arising from or in connection with this Agreement except to the extent liability is caused by the sole negligence or willful misconduct of County or its employees.

Force Majeure: Neither party shall be liable to perform under this Agreement if such failure arises out of causes beyond control, and without the fault or the negligence of said party. Such causes may include, but are not restricted to, Act of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. In every case, however, a failure to perform must be beyond the control and without the fault or the negligence of said party.

Entirety of the Agreement. This Agreement, consisting of eight (8) pages, and Exhibit A consisting of one (1) page, represents the entire and integrated Agreement between the parties and supersedes all prior negotiations and agreements, whether written or oral.

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DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 7 OF 15

IN WITNESS WHEREOF, the parties hereto have executed this agreement on the date first above written.



CITY OF CHEYENNE WYOMING
BY:

Richard L. Kaysen
Richard L. Kaysen, Mayor

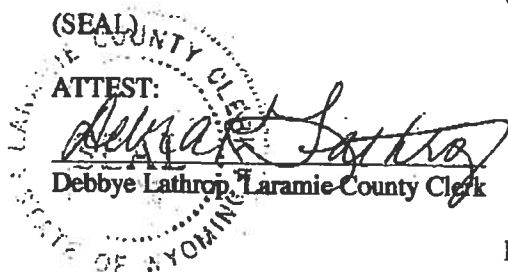
Carol A. Intlekofer
Carol A. Intlekofer, City Clerk

COMMISSIONERS

CHAIRMAN, LARAMIE COUNTY

BY:

Gay Woodhouse
Gay Woodhouse



ATTEST:

Debbie Lathrop
Debbie Lathrop, Laramie County Clerk

Kent Jespersion, MANAGING MEMBER, COLL-IND,
LLC

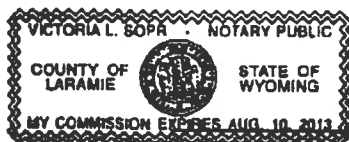
BY:

STATE OF Wyoming)
COUNTY OF Laramie) SS

The foregoing instrument was acknowledged before me by Kent Jespersion this 7 day
of MAY, 2012.

WITNESS MY SIGNATURE AND SEAL

Victoria L. Sopr

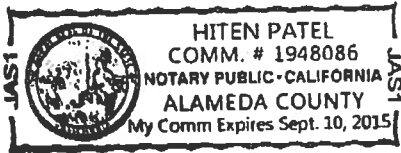


*Christ Read, Managing Partner of
Read Co. and Read Mining Co*
Christine Read, Managing Partner of Read Company and
Read Mining Company

STATE OF California)
) SS
COUNTY OF Alameda)

The foregoing instrument was acknowledged before me by Christine C. Read this 1st
day of May, 2012.

WITNESS MY SIGNATURE AND SEAL



Hiten Patel
Notary Public

**NIOBRARA ENERGY PARK
ROAD MAINTENANCE PLAN
HOA₁ – East Allison Road, Energy Drive**

The Road Maintenance Plan for Niobrara Energy Park will have three (3) basic components. These components include the following:

1. Chip seal every 10 years;
2. Mill and Overlay at 20 years and at 40 years
3. Curb and gutter at 40 years

Average costs per linear foot were estimated using a balanced approximation of the total 40' roadway length and total 36' roadway length.

Current costs given for the three components of the Road Maintenance Plan are as follows:

1. Chip Seal \$.85 per linear foot
2. Mill and overlay 2" \$ 29.60 per linear foot
3. Curb and gutter \$ 10.90 per linear foot

The above costs represent present values of those road maintenances. They must be converted to future values to insure there will be adequate funds to install the following maintenance plan: (chip seal) @ 10 years + (chip seal and mill/overlay) @ 20 years + (chip seal) @ 30 years + (chip seal and mill/overlay and curb/gutter) @ 40 years. For these calculations it is assumed that inflation will be 3% per year, and the interest rate on invested sinking funds will be 1%.

Niobrara Energy Park has approximately 1.58 miles of roadway. 1.18 miles are used for the analysis of HOA₁ coverage (approximate combined length of East Allison Road and Energy Drive).

*Future values at 3% inflation for Chip Seal

Chip Seal_{10 years} = Chip Seal₂₀₁₁ (F/P, 3%, 10) = \$5,277.15 (1.3439) = \$7,091.96
 Chip Seal_{20 years} = Chip Seal₂₀₁₁ (F/P, 3%, 20) = \$5,277.15 (1.8061) = \$9,531.06
 Chip Seal_{30 years} = Chip Seal₂₀₁₁ (F/P, 3%, 30) = \$5,277.15 (2.4273) = \$12,809.23
 Chip Seal_{40 years} = Chip Seal₂₀₁₁ (F/P, 3%, 40) = \$5,277.15 (3.2620) = \$17,214.06

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**NIOBRARA ENERGY PARK
ROAD MAINTENANCE PLAN**
HOA₁ – East Allison Road, Energy Drive

The Road Maintenance Plan for Niobrara Energy Park will have three (3) basic components. These components include the following:

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 Chip Seal_{40 years} = Chip Seal₂₀₁₁ (F/P, 3%, 40) = \$5,277.15 (3.2620) = \$17,214.06

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*Future values at 3% inflation for Mill/Overlay

$$\begin{aligned}\text{Mill/Overlay}_{20 \text{ years}} &= \text{Mill/Overlay}_{2011} (\text{F/P, 3\%, 20}) = \$184,312.76 (1.8061) = \underline{\$332,887.28} \\ \text{Mill/Overlay}_{40 \text{ years}} &= \text{Mill/Overlay}_{2011} (\text{F/P, 3\%, 40}) = \$184,312.76 (1.8061) = \underline{\$601,228.22}\end{aligned}$$

*Future values at 3% inflation for Curb&Gutter

$$\text{Curb\&Gutter}_{40 \text{ years}} = \text{Curb\&Gutter}_{2011} (\text{F/P, 3\%, 40}) = \$135,822.72 (3.2620) = \underline{\$443,053.71}$$

*Annual investment (A) into a sinking fund to produce a sufficient balance with interest earned at 1%

$$A = [(F/P, 3\%) (\text{Chip Seal}_{10}) + (F/P, 3\%, 20) (\text{Mill/Overlay}_{20} + \text{Chip Seal}_{20}) + (F/P, 3\%, 10) (\text{Chip Seal}_{30}) + (\text{Mill/Overlay}_{40} + \text{Chip Seal}_{40} + \text{Curb\&Gutter}_{40})] \times (A/F, 1\%, 40)$$

$$A = [(2.4273) (\$7,091.96) + (1.8061) (\$332,887.28 + \$9,531.06) + (1.3439) (\$12,809.23) + (\$601,228.22 + \$17,214.06 + \$443,053.71)] \times (.0205) = \underline{\$35,144.51}$$

$$\text{Total annual investment} = \underline{\$35,144.51}$$

It is recommended that this road maintenance plan be re-evaluated and adjusted on an annual basis.

ANNUAL INVESTMENT BY LOT ACREAGE

LOT ACREAGE	ACRES	VEGETER	ANNUAL INVESTMENT	TOTAL INVESTMENT
1.3	3.09	5.64	\$ 1,980.97	\$ 165.08
12.3	5.08	9.27	\$ 3,256.73	\$ 271.39
11.3	1.70	3.10	\$ 1,089.85	\$ 90.82
10.3	1.03	1.88	\$ 660.32	\$ 55.03
9.3	1.03	1.88	\$ 660.32	\$ 55.03
8.3	2.27	4.14	\$ 1,455.27	\$ 121.27
7.3	1.70	3.10	\$ 1,089.85	\$ 90.82
6.3	1.70	3.10	\$ 1,089.85	\$ 90.82
5.2	3.02	5.51	\$ 1,936.09	\$ 161.34
4.1	3.15	5.75	\$ 2,019.43	\$ 168.29
3.1	3.15	5.75	\$ 2,019.43	\$ 168.29
2.1	3.11	5.67	\$ 1,993.79	\$ 166.15
1.1	3.13	5.71	\$ 2,006.61	\$ 167.22
1.4	2.64	4.82	\$ 1,692.48	\$ 141.04
2.4	4.80	8.76	\$ 3,077.23	\$ 256.44
3.4	4.80	8.76	\$ 3,077.23	\$ 256.44
4.4	4.82	8.79	\$ 3,090.05	\$ 257.50
5.4	4.60	8.39	\$ 2,949.01	\$ 245.75
18 LOTS	54.82	100.00	\$ 35,144.51	\$ 2,928.71

**NIOBRARA ENERGY PARK
ROAD MAINTENANCE PLAN**

HOA – East Allison Road, Energy Drive, and Hinkley Avenue

The Road Maintenance Plan for Niobrara Energy Park will have three (3) basic components. These components include the following:

1. Chip seal every 10 years;
2. Mill and Overlay at 20 years and at 40 years
3. Curb and gutter at 40 years

Current costs given for the three components of the Road Maintenance Plan for a 36' roadway are as follows:

1. Chip Seal \$.84 per linear foot
2. Mill and overlay 2" \$ 29.46 per linear foot
3. Curb and gutter \$ 10.90 per linear foot

The above costs represent present values of those road maintenances. They must be converted to future values to insure there will be adequate funds to install the following maintenance plan: (chip seal) @ 10 years + (chip seal and mill/overlay) @ 20 years + (chip seal) @ 30 years + (chip seal and mill/overlay and curb/gutter) @ 40 years. For these calculations it is assumed that inflation will be 3% per year, and the interest rate on invested sinking funds will be 1%.

Niobrara Energy Park has approximately 1.58 miles of roadway.

*Future values at 3% inflation for Chip Seal

Chip Seal_{10 years} = Chip Seal₂₀₁₁ (F/P, 3%, 10) = \$7,007.62 (1.3439) = \$9,417.54
 Chip Seal_{20 years} = Chip Seal₂₀₁₁ (F/P, 3%, 20) = \$7,007.62 (1.8061) = \$12,656.46
 Chip Seal_{30 years} = Chip Seal₂₀₁₁ (F/P, 3%, 30) = \$7,007.62 (2.4273) = \$17,009.60
 Chip Seal_{40 years} = Chip Seal₂₀₁₁ (F/P, 3%, 40) = \$7,007.62 (3.2620) = \$22,858.86

*Future values at 3% inflation for Mill/Overlay

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Mill/Overlay_{20 years} = Mill/Overlay₂₀₁₁ (F/P, 3%, 20) = \$245,739.93 (1.8061) = \$443,830.89
Mill/Overlay_{40 years} = Mill/Overlay₂₀₁₁ (F/P, 3%, 40) = \$245,739.93 (1.8061) = \$801,603.65
*Future values at 3% inflation for Curb&Gutter

Curb&Gutter_{40 years} = Curb&Gutter₂₀₁₁ (F/P, 3%, 40) = \$181,864.32 (3.2620) = \$593,241.41

*Annual investment (A) into a sinking fund to produce a sufficient balance with interest earned at 1%

$A = [(F/P, 3\%,) (Chip\ Seal_{10}) + (F/P, 3\%, 20) (Mill/Overlay_{20} + Chip\ Seal_{20}) + (F/P, 3\%, 10) (Chip\ Seal_{30}) + (Mill/Overlay_{40} + Chip\ Seal_{40} + Curb\&\ Gutter_{40})] \times (A/F, 1\%, 40)$

$A = [(2.4273) (\$9,417.54) + (1.8061) (\$443,830.89 + \$12,656.46) + (1.3439) (\$17,009.60) + (\$801,603.65 + \$22,858.86 + \$593,241.41)] \times (.0205) = \underline{\$46,901.62}$

Total annual investment = \$46,901.62

It is recommended that this road maintenance plan be re-evaluated and adjusted on an annual basis.

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DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 14 OF 15

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ANNUAL INVESTMENT BY LOT ACREAGE

LOT/BLOCK	ACRES	% ACRES	ANNUAL INVESTMENT	MONTHLY INVESTMENT
1,3	3.09	3.41	\$ 1,599.98	\$ 133.33
12,3	5.08	5.61	\$ 2,630.38	\$ 219.20
11,3	1.70	1.88	\$ 880.25	\$ 73.35
10,3	1.03	1.14	\$ 533.33	\$ 44.44
9,3	1.03	1.14	\$ 533.33	\$ 44.44
8,3	2.27	2.51	\$ 1,175.39	\$ 97.95
7,3	1.70	1.88	\$ 880.25	\$ 73.35
6,3	1.70	1.88	\$ 880.25	\$ 73.35
5,2	3.02	3.33	\$ 1,563.73	\$ 130.31
4,1	3.15	3.48	\$ 1,631.05	\$ 135.92
3,1	3.15	3.48	\$ 1,631.05	\$ 135.92
2,1	3.11	3.43	\$ 1,610.33	\$ 134.19
1,1	3.13	3.46	\$ 1,620.69	\$ 135.06
1,4	2.64	2.91	\$ 1,366.97	\$ 113.91
2,4	4.80	5.30	\$ 2,485.40	\$ 207.12
3,4	4.80	5.30	\$ 2,485.40	\$ 207.12
4,4	4.82	5.32	\$ 2,495.76	\$ 207.98
5,4	4.60	5.08	\$ 2,381.84	\$ 198.49
1,2	4.43	4.89	\$ 2,293.82	\$ 191.15
2,2	2.55	2.82	\$ 1,320.37	\$ 110.03
3,2	3.02	3.33	\$ 1,563.73	\$ 130.31
4,2	3.03	3.35	\$ 1,568.91	\$ 130.74
2,3	1.70	1.88	\$ 880.25	\$ 73.35
3,3	1.03	1.14	\$ 533.33	\$ 44.44
4,3	1.03	1.14	\$ 533.33	\$ 44.44
5,3	2.27	2.51	\$ 1,175.39	\$ 97.95
5,1	16.70	18.44	\$ 8,647.13	\$ 720.59
27 LOTS	90.58	100.00	\$ 46,901.52	\$ 3,908.47

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 DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 15 OF 15

NIOBRARA ENERGY PARK DEVELOPMENT AGREEMENT
AMENDMENT #1

This Development Agreement is made and entered into by and between Laramie County Wyoming, 309 W. 20th Street, Cheyenne, Wyoming 82001 (County), and COLL-IND LLC (Developer) for the purpose of defining specific improvements related to the development of the Niobrara Energy Park.

WHEREAS this agreement will be an amendment to the Development Agreement executed between Coll-Ind, LLC, City of Cheyenne and Laramie County dated and recorded in the Laramie County Clerk's office, reference # 590582, Blk 2273, page 1176;

WHEREAS a master plan has been completed for the Fox Farm Road corridor that may include certain storm water drainage improvements that may impact Energy Drive ROW planned improvements from the above agreement;

WHEREAS the current planned improvements to be installed by the developer include an 8' concrete sidewalk along the east side of Energy Drive. The area that this sidewalk is to be installed in appears to be the most likely corridor for a future storm sewer pipe from the Fox Farm road-way improvement project.

WHEREAS both parties agree that it would be cost effective to defer the installation of the sidewalk until after the Fox Farm Road project improvement has been completed. WHEREAS both parties agree that the Fox Farm Road project timeline is uncertain and that any concrete poured today would likely be destroyed in the future.

As such, the developer will pay the amount of **\$60,000.00** to Laramie County or the City of Cheyenne toward the construction of an alternative Greenway connection, see exhibit attached, to be located within the right-of-way of E Allison Road, south of ARP Elementary School and north of E. Allison Road to make an alternative transportation connection into the business park.

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This Development Agreement Amendment #1 was approved by the Laramie County Commissioners on day of _____, 2024.

**BOARD OF COMMISSIONERS OF THE
COUNTY OF LARAMIE, WYOMING:**

By: _____
Chairman

Date: _____

ATTEST:

By: _____
Debra Lee, Laramie County Clerk

Approved as to Form:

County Attorney's Office

Patrick Collins, Mayor

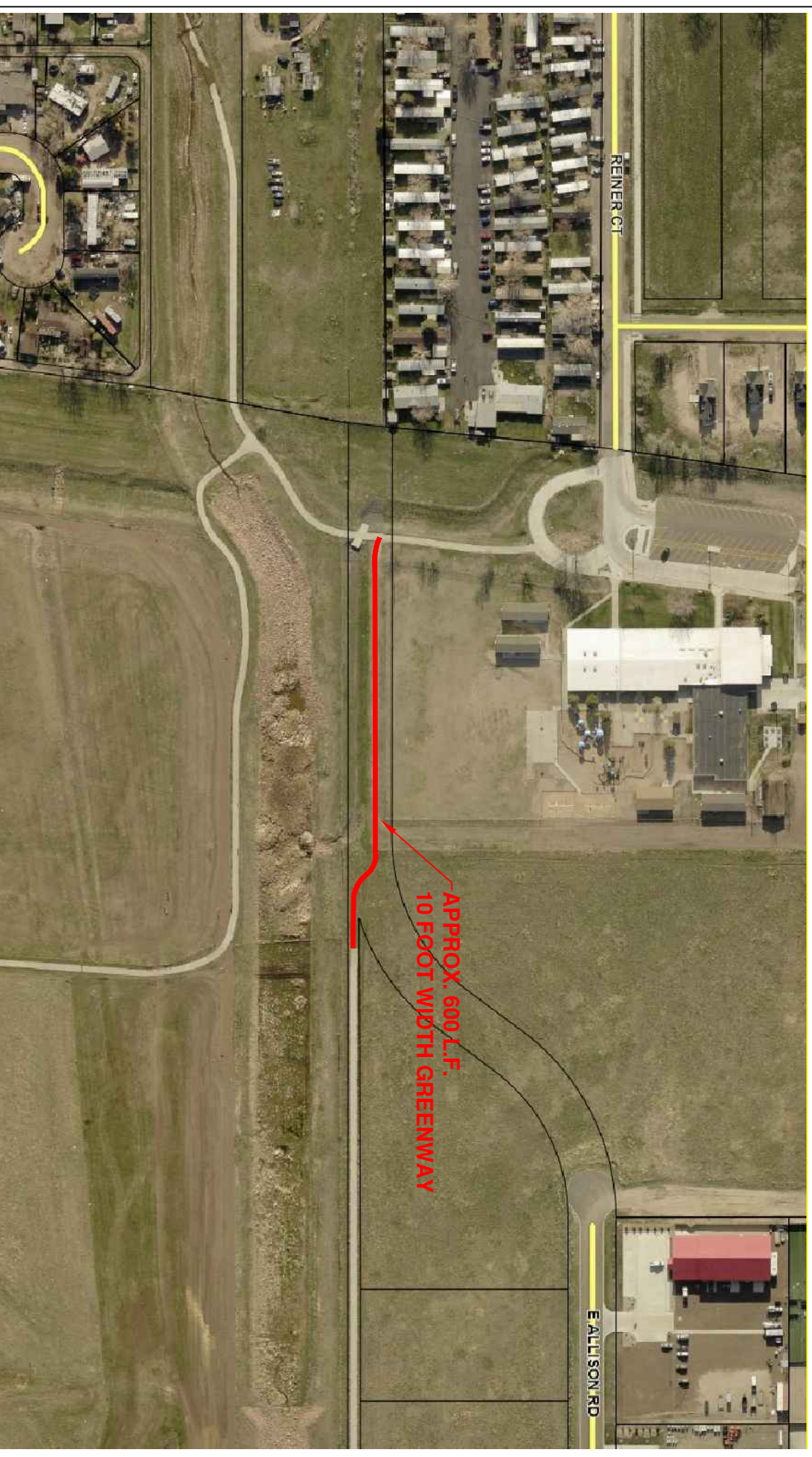
(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

COLL-IND, LLC BY:

Ben Trautwein, Managing Member



Niobrara Energy Park Development Agreement

Proposed option to exchange 1300 l.f. Greenway along Energy Drive and provide funding for 600 l.f., 10-foot width Greenway connection north of Allison Draw and south of ARP Elementary within E. Allison Road right-of-way. \$60,000.00. Direct payment to the County or City.

